

9:00 A.M.

Calendar Lines # 3

Case Name Jeremy Williams vs Ford Motor Company et al

Case No. 24CV447980

Motion for Summary Judgment/Adjudication

Before the court is Ford Motor Company's motion for summary judgment/ adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

In this action, plaintiff Jeremy K. Williams ("Plaintiff") alleges, among other things, defendant Ford Motor Company ("Ford") and others violated the Song-Beverly Consumer Warranty Act ("Act") with regard to a 2024 Ford Mustang vehicle ("Vehicle"). In particular, Plaintiff alleges the Vehicle suffered a Transmission Defect. (Complaint, ¶¶24 – 35).

On September 24, 2024, Plaintiff filed a complaint against defendant Ford and others asserting causes of action for:

- (1) Violation of subdivision (d) of Civil Code section 1793.2
- (2) Violation of subdivision (b) of Civil Code section 1793.2
- (3) Violation of subdivision (a)(3) of Civil Code section 1793.2
- (4) Breach of the Implied Warranty of Merchantability
- (5) Negligent Repair
- (6) Fraudulent Inducement - Concealment

On November 1, 2024, defendant Ford filed an answer to Plaintiff's complaint.

On March 16, 2026, defendant Ford filed the motion now before the court, a motion for summary judgment/ adjudication of Plaintiff's complaint.

On March 19, 2026, the court issued an order advancing the hearing date of defendant Ford's motion for summary judgment/ adjudication from November 17, 2026 to June 4, 2026.

On March 20, 2026, defendant Ford filed and served (electronically and personally) Plaintiff with amended notice of its motion for summary judgment/ adjudication.

Based on a hearing date of June 4, 2026, Plaintiff's opposition was due May 15, 2026. (See Code Civ. Proc., §437c, subd. (b)(2)—"An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing.") Plaintiff has not filed any timely opposition.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 437c(a)(1), "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." "A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., §437c, subd. (p)(2)).

"The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., §437c, subd. (c)).

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294). “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519). A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2)). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741).

To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant. . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

III. ANALYSIS

A. FIRST CAUSE OF ACTION

As to the first three causes of action of Plaintiff’s complaint, defendant Ford acknowledges:

A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). (Civ. Code, § 1793.2; *Ibrahim v. Ford Motor Co.* (1989) 214 Cal. App. 3d 878, 886-887 [263 Cal. Rptr. 64]).(*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101).

Specifically with regard to the third element, defendant Ford cites *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 (*Silvio*) where the court explained:

The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle "after a reasonable number of attempts." "Attempts" is plural.

The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.

Here, defendant Ford proffers evidence that there was only one warranty repair on the Vehicle.¹ Pursuant to *Silvio*, one attempt does not trigger defendant Ford's obligation to make restitution or replace the Vehicle under the Act. Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

B. SECOND CAUSE OF ACTION

Civil Code section 1793.2, subdivision (b), states, in relevant part, "the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days." Here, defendant Ford proffers evidence that the subject Vehicle was in service for no more than 15 days, not in violation of the Act.² Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

C. THIRD CAUSE OF ACTION

Civil Code section 1793.2, subdivision (a)(3), states, "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall . . . Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

Defendant Ford proffers evidence that the repair records do not indicate Ford failed to make service literature and replacement parts available to authorized service and repair facilities.³ Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

D. FOURTH CAUSE OF ACTION

Under the implied merchantability warranty, "every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable." (§ 1792). The warranty "arises by operation of law" and therefore applies despite its omission from a purchase contract. (*Mega RV Corp. v. HWH Corp.* (2014) 225 Cal.App.4th 1318, 1330 [170 Cal. Rptr. 3d 861]; see *American Suzuki Motor Corp. v. Superior Court* (1995) 37 Cal.App.4th 1291, 1295 [44 Cal. Rptr. 2d 526] (*American Suzuki*)). Merchantability, as pertinent here, means that the goods "[p]ass without objection in the trade under the contract description," and are "fit for the ordinary purposes for which such goods are used." (§ 1791.1, subd. (a)). (*Brand v. Hyundai Motor America* (2014) 226 Cal.App.4th 1538, 1545 (*Brand*)).

A "core test of merchantability is fitness for the ordinary purpose for which such goods are used." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303 [95 Cal. Rptr. 3d 285] (*Mexia*)). "Such fitness is shown if the product 'is "in safe condition and substantially free of defects"' [Citation.]" (*Ibid.*; see *American Suzuki, supra*, 37 Cal.App.4th at p. 1296 [implied warranty does not promise to fulfill buyer's expectations, but provides instead for minimum level of quality]). Thus, a new car need not "be perfect in every detail"; rather, its implied merchantability "requires only that a vehicle be reasonably suited for ordinary use." (*Keegan v. American Honda Motor Co., Inc.* (C.D.Cal. 2012) 838 F.Supp.2d 929, 945). (*Brand, supra*, 226 Cal.App.4th at p. 1546).

¹ See Ford Motor Company's Separate Statement of Undisputed Material Facts in Support of Motion for Summary Judgment/ Adjudication ("Ford UMF"), Fact Nos. 5, 6, and 10.

² See Ford UMF, Fact No. 6, 10, and 11.

³ See Ford UMF, Fact No. 12.

Here, defendant Ford proffers evidence that the Vehicle was presented once for a noise when closing the door and contends this does not render the Vehicle unfit for its ordinary purpose, as a matter of law.⁴ Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

E. FIFTH CAUSE OF ACTION

Plaintiff's fifth cause of action alleges negligent repair. Defendant Ford proffers evidence that the Vehicle was presented once for a noise when closing the door and repair of this issue was made with the subject Vehicle being in for service no more than 15 days.⁵ Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

F. SIXTH CAUSE OF ACTION

Plaintiff's sixth cause of action alleges fraudulent concealment of the Transmission Defect. Defendant Ford proffers evidence that Plaintiff did not present the Vehicle for a single transmission complaint or repairs.⁶ In the absence of a transmission defect, defendant Ford contends there can be no fraudulent concealment of such a defect. Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

As discussed above, the court finds defendant Ford has met its initial burden of showing that the causes of action asserted in Plaintiff's complaint have no merit. Having filed no opposition, Plaintiff has failed to show that a triable issue of one or more material facts exists.

IV. CONCLUSION

Based on the foregoing, Defendant Ford's motion for summary judgment as to Cause of Actions 1 through 6 is GRANTED. The Court will prepare the formal Order.

Calendar Lines # 5

Case Name Fuheng, Inc. et al vs Zihan Liu

Case No. 24CV441593

Motion for Attorney's Fees and Sanctions

Before the court is Plaintiffs Fuheng, Inc.'s Motion for Attorney's Fees and Sanctions against Defendant Zihan Liu. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On November 13, 2025, Plaintiffs Fuheng, Inc. filed a Motion for Attorney's Fees and Sanctions against Defendant Zihan Liu. Subsequently, on December 26, 2025, the plaintiff filed a proof of service of motion indicating U.S. Mail service to the defendant on November 13, 2025. Plaintiffs seeks a total of \$13,387.50 based on \$8,925.00 in attorney's fees and \$4,462.50 based on a 1.5 multiplier of the lodestar.

Defendant Liu filed opposition papers on May 26, 2026, and provided proof of service indicating U.S. mail service on that same day. Per Code of Civil Procedure section 1005(b), opposition papers were due on May 21, 2026.

Plaintiff filed a supplemental declaration by Andy Yang on May 19, 2026 and a reply brief with attached Exhibits A-B on May 26, 2026 that was accompanied by a proof of service on that same day by way of U.S. mail service.

⁴ See Ford UMF, Fact Nos. 6, 7, and 10.

⁵ See Ford UMF, Fact Nos. 6 and 10.

⁶ See Ford UMF, Fact Nos. 6, 8, and 9.